

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

In the Matter of the Dismissal of:

OSCAR OCHOA

A Permanent Certificated Employee,

Respondent.

OAH No. 2025020460

DECISION

Administrative Law Judge Deena R. Ghaly, Office of Administrative Hearings (OAH), State of California, heard this matter on April 1, 2025, in Los Angeles, California.

Assistant General Counsels Leslie J. Chi and Brian Davenport, Los Angeles Unified School District (LAUSD) Office of the General Counsel, represented complainant LAUSD. Attorneys Tamra M. Smith and Andrew C. Deng, Equality Law LLP, represented respondent Oscar Ochoa, who was present.

Both parties presented opening arguments. LAUSD introduced documents for jurisdictional purposes which were admitted into the record. No other evidence was introduced by either party. The record closed and the matter was submitted for decision on April 1, 2025.

SUMMARY

LAUSD sought to dismiss respondent based on allegations it argued constituted egregious misconduct. During the hearing, however, LAUSD failed to produce any evidence supporting its contentions. As the moving party, LAUSD bears the burden of proof. Therefore, the charges against respondent are dismissed and he retains his position as a permanent certificated employee.

FACTUAL FINDINGS

Jurisdictional Matters

1. At all times relevant, respondent was a permanent certificated employee of LAUSD.
2. On November 21, 2024, Kirsten K. Murphy, LAUSD's Associate Superintendent Talent & Labor Relations (Murphy), signed a Statement of Charges against respondent charging him with egregious misconduct (Education Code sections 44932, subdivision (a)(1), and 44939.10).
3. On February 4, 2025, respondent, through counsel, prepared and caused to be filed a Request for Hearing and Notice of Defense.
4. On February 20, 2025, Murphy signed an Accusation charging respondent with egregious misconduct. Thereafter, this hearing ensued.
5. Neither party provided any evidence at the administrative hearing.

LEGAL CONCLUSIONS

1. LAUSD has the burden of proving its allegations by a preponderance of the evidence. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035, 1039-1040.) Preponderance of the evidence means evidence outweighing that presented by the adverse side. (*Glage v. Hawes Firearms Co.* (1990) 226 Cal.App.3d 314, 325.)

2. LAUSD failed to establish respondent committed egregious misconduct within the meaning of Education Code sections 44932, subdivision (a)(1), and 44939.10.

ORDER

The Accusation and Statement of Charges against respondent Oscar Ochoa are dismissed. Respondent Oscar Ochoa shall not be dismissed from employment with the Los Angeles Unified School District.

DATE: **04/25/2025**

Deena R. Ghaly
Deena R. Ghaly (Apr 25, 2025 15:35 PDT)

DEENA R. GHALY

Administrative Law Judge

Office of Administrative Hearings